

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Shelton	Team: Squad #06	CCRB Case #: 201809219	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/25/2018 6:50 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/10/2020	Precinct: 73		
Date/Time CV Reported Sun, 10/28/2018 4:51 AM	CV Reported At: Other City agency	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/05/2018 11:04 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. DT3 Terry Brienza	01738	932363	WARRSEC		
2. SGT Raymond Tomins	05336	902480	WARRSEC		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. Officers			Unknown		
Officer(s)	Allegation		Investigator Recommendation		
A . SGT Raymond Tomins	Abuse: Sergeant Raymond Tomins threatened to arrest § 87(2)(b)		A . Complainant Uncooperative		
B . DT3 Terry Brienza	Abuse: Detective Terry Brienza threatened to arrest § 87(2)(b)		B . Complainant Uncooperative		

Case Summary

On October 28, 2018, § 87(2)(b) filed this complaint with 311 who sent it to IAB on the same day, generating IAB log #2018-42323. On November 5, 2018, this complaint was received at the CCRB. There was no video footage obtained for this incident. § 87(2)(b) a civilian witness in this complaint and § 87(2)(b)'s son, was arrested during the incident.

While filing her original complaint with 311, § 87(2)(b) provided a phone number, an email address, and a physical address. On November 8, 2018, § 87(2)(b) was contacted on this phone number. She requested some time before speaking with the CCRB as she was exploring other avenues to deal with her complaint. Between November 9, 2018, and November 19, 2018, this number was called three times with no answer and no option for voicemail. On November 19, 2018, § 87(2)(b) was reached via phone. She provided a phone statement, confirmed her contact information, and provided an additional phone number. She could not schedule an interview at that time, and agreed to do so on November 28, 2018. Between November 28, 2018 and December 11, 2018, her number was called five times with no answer and no option for voicemail.

Between December 3, 2018, and December 13, 2018, the additional number she provided during her phone statement was called five times and voicemails were left each time.

Between November 13, 2018, and December 11, 2018, three letters were sent to her physical address, none of which were returned. On December 3, 2018, and December 11, 2018, she was sent emails, neither of which were returned.

To date, § 87(2)(b) has not called to schedule an interview or to discuss her complaint at all. A search of the Department of Correction database on December 18, 2018, revealed that § 87(2)(b) was not currently incarcerated. § 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **complainant uncooperative**.

Squad No.: 6

Investigator:	_____	Inv. Benjamin Shelton	_____
	Signature	Print Title & Name	Date
Squad Leader:	_____	IM Jessica Peña	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date

